

25STCV22518 25STCV22518

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 25STCV22518 Hearing Date: July 15, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

DONNA

LABON,

Plaintiff,

vs.

IRWIN

WARSAW, et al.,

Defendants.

Case No.:

25STCV22518

Hearing

Date:

July 15, 2026

[TENTATIVE]

ORDER DENYING IN PART AND GRANTING IN PART DEFENDANT'S MOTION TO STRIKE

I. BACKGROUND

On December 10, 2023, Defendant Irwin Warsaw ("Defendant") allegedly negligently operated his vehicle under the influence, colliding with the vehicle of Plaintiff Donna Labon ("Plaintiff"). As a result of the collision, Plaintiff suffered injuries and further damages.

On March 16, 2026, Defendant filed the instant motion to strike portions of Plaintiff's complaint, specifically Plaintiff's request for punitive damages and the phrase "under the influence." Plaintiff has not filed an opposition.

II. LEGAL STANDARD

The court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

III. DISCUSSION

A. "Under the Influence (despicable conduct)"

Defendant argues the Complaint fails to allege any facts supporting the "under the influence" allegation. (Mot., p. 6.) Defendant contends the allegations of "under the influence" are conclusory and an attempt to inflame and prejudice rather than inform. (Mot., p. 7.)

For purposes of motion to strike, the court must consider all allegations in the Complaint to be true. Moreover, courts have continually ruled that “line-item vetoes” are not proper for a motion to strike. (See PH II, Inc. v. Superior Court (1995) 33 Cal.App.4th 1680, 1683.) Plaintiff’s allegations of driving “under the influence, (despicable conduct)” are relevant to Plaintiff’s claim that Defendant was operating the vehicle negligently. Additionally, at this stage, the allegations must be taken as true. Therefore, the phrase “under the influence, (despicable conduct)” is not taken as inflammatory, but rather an allegation taken as true regarding Plaintiff’s claim.

Accordingly, Defendant’s motion to strike is DENIED as to the phrase “under the influence, (despicable conduct)” and any reference to “despicable conduct”.

B. Punitive Damages

Defendant further argues the Complaint does not meet the heightened pleading standard for punitive damages; thus, the punitive damages allegations should be stricken. (Mot., p. 7.)

To obtain punitive damages, a plaintiff must plead sufficient facts in support of punitive damages. (See Hilliard v. A.H. Robins Co. (1983) 148 Cal.App.3d 374, 391-92.) In addition, punitive damages are allowed only where “it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code, § 3294(a).) Courts have viewed despicable conduct as conduct “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. (Scott v. Phoenix Schools, Inc., (2009) 175 Cal.App.4th 702, 715.)

Further, Civil Code §

3294(c) provides the definition of malice, oppression, and fraud. Malice is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c).) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Ibid.) Fraud

is “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Ibid.)

Here, Plaintiff fails to plead facts sufficient to support a claim for punitive damages. The Complaint alleges Defendant was driving under the influence and negligently operated the vehicle. (Compl., ¶¶ 10, 11.) The Complaint does not allege ultimate and specific facts of Defendant’s oppression, fraud, or malice, only alleging Defendant negligently drove under the influence. A “conclusory characterization of defendant’s conduct as intentional, willful and fraudulent is a patently insufficient statement of “oppression, fraud, or malice, express or implied,” within the meaning of section 3294.” (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.)

Defendant argues cases involving alleged intoxicated driving require specific factual allegations to support punitive damages, relying on Taylor v. Superior Court (1979) 24 Cal.3d 890 (“Taylor”). (Mot., p. 5.) In Taylor, the court found voluntary intoxication followed by a knowing decision to drive can satisfy the malice standard. (Taylor, supra, 24 Cal.3d at p. 899.) However, the alleged facts in the complaint in Taylor are distinguishable from the alleged facts here. The complaint in Taylor alleged facts of a documented history of alcoholism and a tendency to drive while under the influence. (Taylor, supra, 24 Cal.3d at p. 893.) Here, the complaint only alleges driving under the influence and negligently operating the vehicle. Plaintiff has failed to sufficiently plead facts to support a claim for punitive damages.

Accordingly, Defendant’s motion to strike is GRANTED as to punitive damages.

C. Sanctions

Finally, Defendant requests monetary sanctions against Plaintiff’s counsel, Michael Yadegari, for signing the complaint and thereby certifying the factual allegations without reasonable inquiry or evidentiary support, in violation of Code of Civil Procedure section

128.7, subdivision (b). (Mot., p. 8.)

The Court may “impose an appropriate sanction upon the attorneys, law firms, or parties that have violated subdivision (b) or are responsible for the violation. In determining what sanctions, if any, should be ordered, the court shall consider whether a party seeking sanctions has exercised due diligence.” (Code Civ. Proc., § 128.7, subd. (c).) “A motion for sanctions under this section shall be made separately from other motions or requests and shall describe the specific conduct alleged to violate subdivision (b).” (Code Civ. Proc., § 128.7, subd. (c)(1).)

Here, Defendant has not filed their motion for sanctions separately from the motion to strike. As a result, the Court declines to award sanctions at this time. Defendant’s request for monetary sanctions is DENIED.

IV. CONCLUSION

Defendant Irwin Warsaw’s motion to strike Paragraph 10, the phrase “UNDER THE INFLUENCE, (despicable conduct)” is DENIED.

Defendant’s motion to strike Paragraph 11, the phrase “UNDER THE INFLUENCE, (despicable conduct)” is DENIED.

Defendant’s motion to strike page 5, Prayer for Relief, Paragraph 6: “For punitive damages” is GRANTED with leave to amend.

Defendant’s motion to strike any and all references to punitive damages, exemplary damages, “despicable conduct,” and/or conduct warranting punitive damages is GRANTED with leave to amend as to punitive damages, exemplary damages, and/or conduct warranting punitive damages, and is DENIED as to “despicable conduct.”

Defendant’s request for monetary sanctions is DENIED.

Defendant is ordered to give notice.

DATED:

July 15, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.